

FEDERAL MARITIME COMMISSION

DOCKET NO. CC-001

MEDITERRANEAN SHIPPING COMPANY—INVESTIGATION FOR COMPLIANCE
WITH §§ 41104(a) AND 41102 OF DEMURRAGE OR DETENTION CHARGES UNDER
THE CHARGE COMPLAINT PROCEDURES OF 46 U.S.C. § 41310

VERIFIED STATEMENT OF KRISTEN MONACO

1. My name is Kristen Monaco, and I am currently the Director of the Bureau of Trade Analysis (BTA) of the Federal Maritime Commission (FMC or Commission). My office address is 800 North Capitol Street, N.W., Washington, D.C. 20573. I have been employed by the Commission for the past two years.
2. I received my education from the University of Wisconsin-Milwaukee where I received a Ph.D. in Economics. My previous work experience includes working at the Bureau of Labor Statistics and serving as faculty in the Economics Department at California State University Long Beach.
3. In my capacity as the Director of BTA, I am responsible for compliance with regulations related to tariffs, service contracts, and marine terminal schedules. I also direct the work of the competition analysis unit, which reviews and monitors agreements filed with the Commission. Finally, I serve as the Commission's chief economist, responsible for providing economic analysis to the Commission on topics involving international trade, macroeconomic trends, and industry structure, conduct, and performance.
4. My education, work experiences, and current position qualify me to analyze data and information and come to informed conclusions regarding ocean transportation trends and market behavior.
5. In the Summer of 2022, the number of containerships anchored off the coast of Washington was minimal. See Attachment A. The eight charts comprising Attachment A demonstrate the number of containerships anchored at U.S. Ports between June 7, 2022 and July 26, 2022. In the Seattle-Tacoma (Sea-Tac) region, the number of containerships at anchor outside Sea-Tac never exceeded 2 and for many weeks that quantity was 0. The number of containerships at anchor serves as a key congestion indicator, and few or no ships at anchor signals a lack of congestion in the port complex.

6. Effective February 21, 2023, MSC updated the congestion surcharge rule, (CGS) (10-AO) in its tariff (MESU-032). *See Attachment B.*

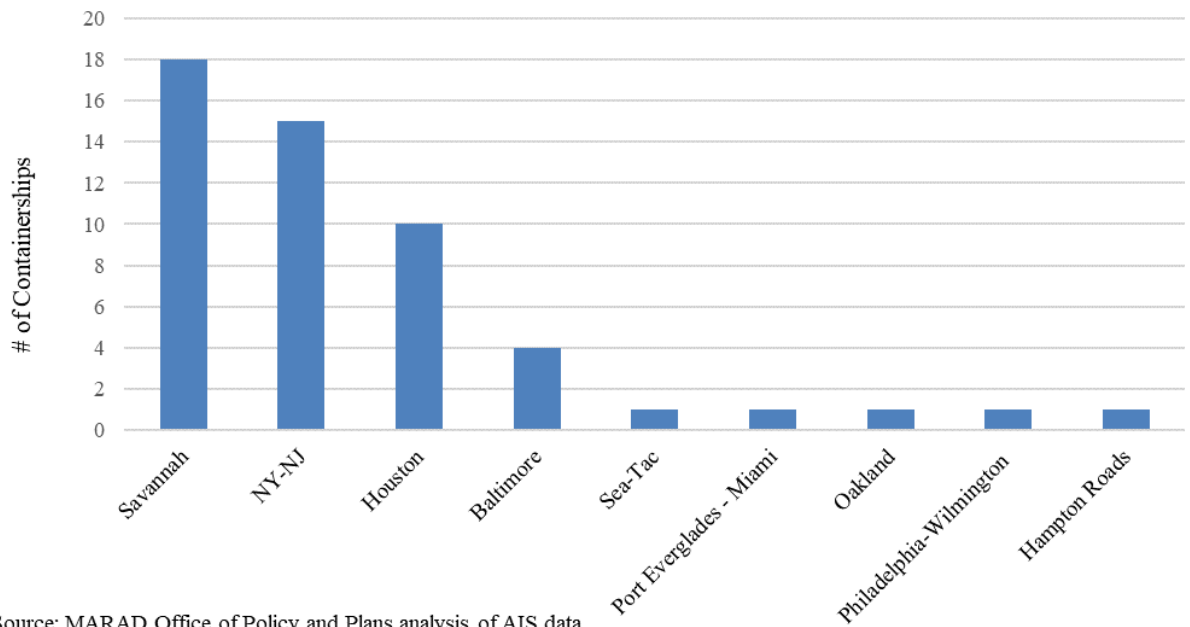
I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed this 27th day of March, 2023

Kristen Monaco, Director
Bureau of Trade Analysis
Federal Maritime Commission

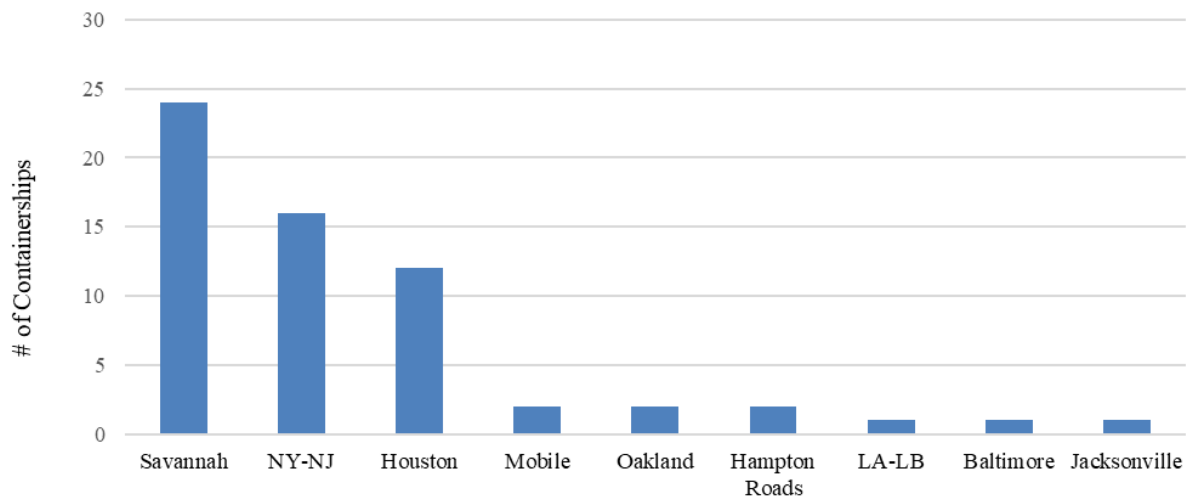
ATTACHMENT A

Containerships Anchored off U.S. Ports (as of 6/7/22)



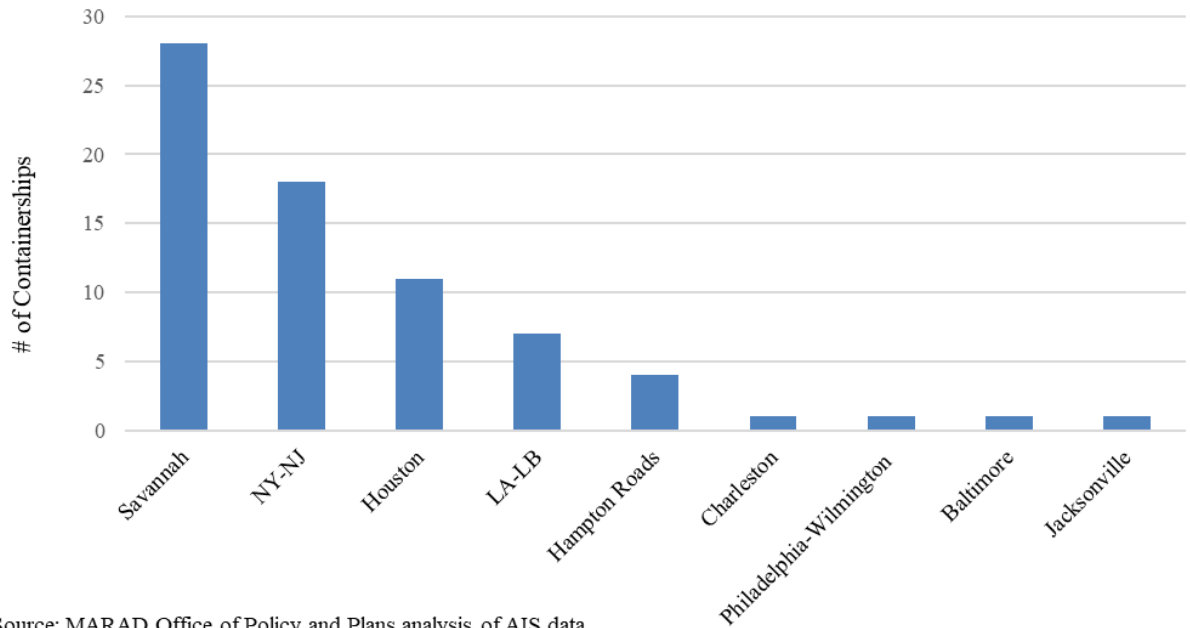
Source: MARAD Office of Policy and Plans analysis of AIS data.

Containerships Anchored off U.S. Ports (as of 6/14/22)



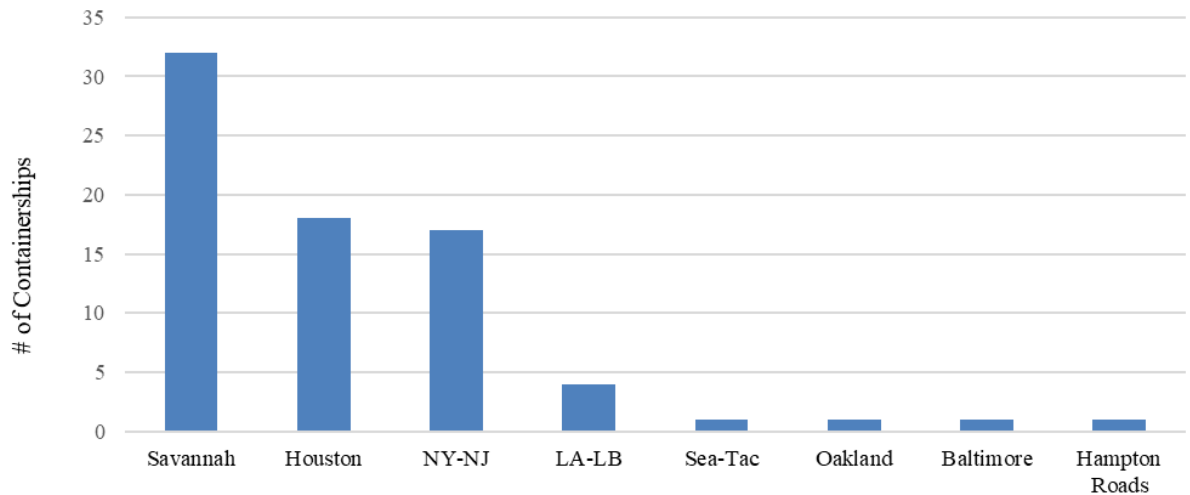
Source: MARAD Office of Policy and Plans analysis of AIS data.

Containerships Anchored off U.S. Ports (as of 6/21/22)



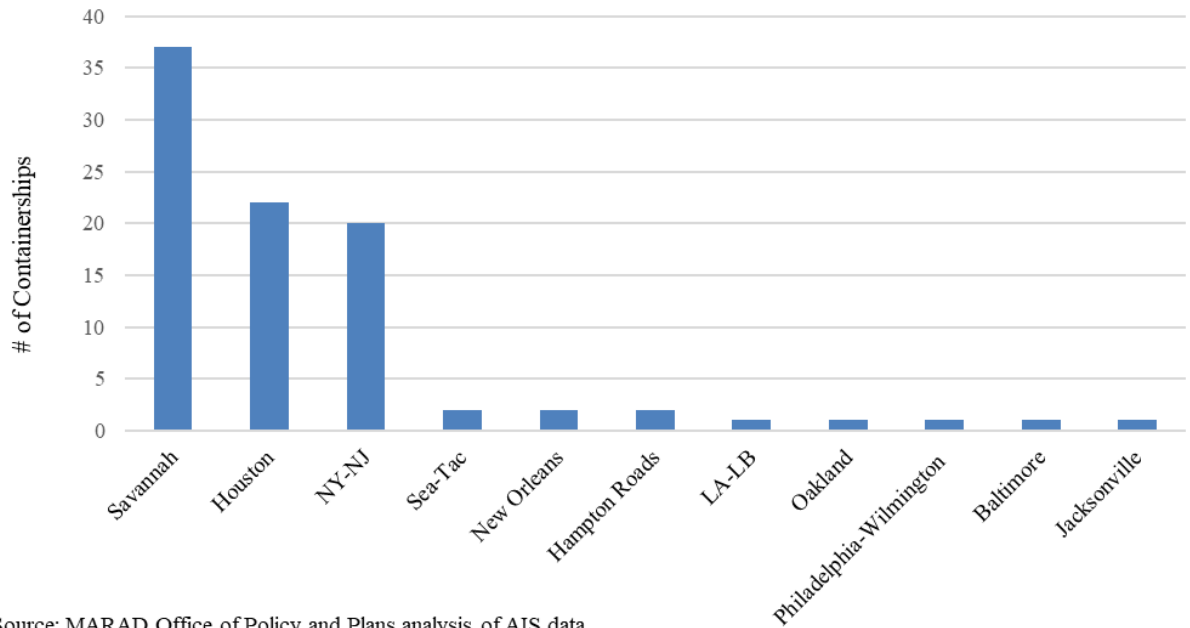
Source: MARAD Office of Policy and Plans analysis of AIS data.

Containerships Anchored off U.S. Ports (as of 6/28/22)



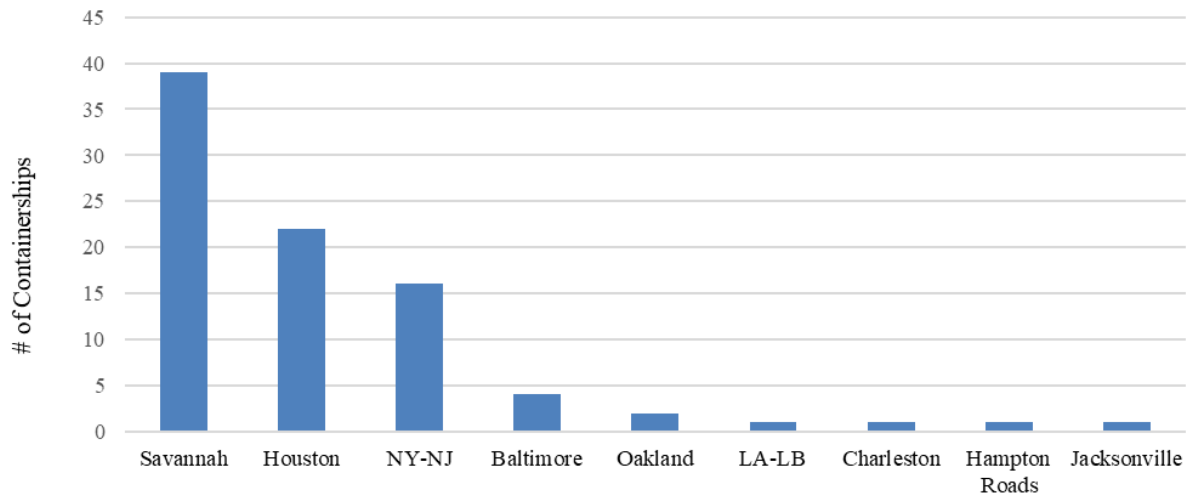
Source: MARAD Office of Policy and Plans analysis of AIS data.

Containerships Anchored off U.S. Ports (as of 7/05/22)



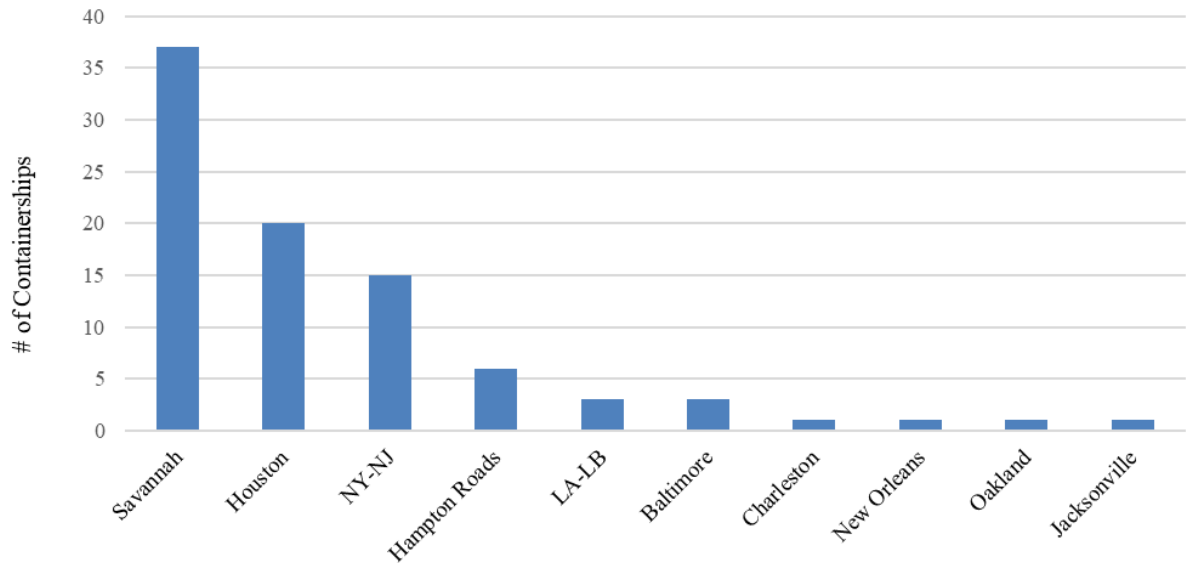
Source: MARAD Office of Policy and Plans analysis of AIS data.

Containerships Anchored off U.S. Ports (as of 7/12/22)



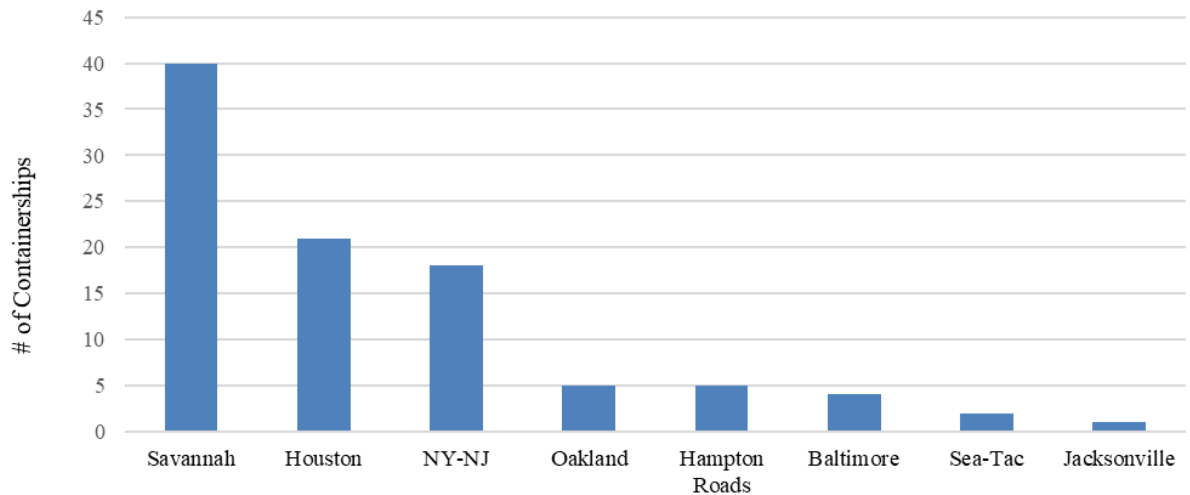
Source: MARAD Office of Policy and Plans analysis of AIS data.

Containerships Anchored off U.S. Ports (as of 7/19/22)



Source: MARAD Office of Policy and Plans analysis of AIS data.

Containerships Anchored off U.S. Ports (as of 7/26/22)



Source: MARAD Office of Policy and Plans analysis of AIS data.

ATTACHMENT B

DESCARTES

MEDITERRANEAN SHIPPING COMPANY S.A.

— Rate, Commodity and Contract Search —

— Components —



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[Home](#) [Rate Search](#) [Item Search](#) [Rate Analysis](#) [Contract Search](#) [Rules](#) [Inland Rates](#)

You are here: [CarrierSelect](#) > [Rules](#) > [Rule Detail](#) (as of 12Mar2023)

Organization: MEDITERRANEAN SHIPPING COMPANY S.A.(001699)

Tariff: MSC Far East EB(to USA)&WB(from USA) Freight Tariff & Rules(MESU-032) [view Detail](#)

Rule: CONGESTION SURCHARGE (CGS)(10- A0)

Table: [CGS - CONGESTION SURCHARGE](#)

Assessorial: [CGS - CONGESTION SURCHARGE](#)

Filing Information: [View Filing History](#)

Filed: 21Feb2023

Effective: 21Feb2023

Expires:

Thru:

Amendment Type: R

Status: Filed

Special Case:

To highlight all occurrences of a word or phrase, enter one or more search words and click Find. All occurrences of the words will be highlighted in red.

Search Words:

congestion

Find

To individually locate each occurrence of a word or phrase, press Ctrl-F and use your browser's Find Next function.

FOR THE PURPOSE OF THIS RULE, TERMS MERCHANT AND CARRIER HAVE THE MEANINGS SET FORTH IN CARRIERS CONTRACT OF CARRIAGE TERMS AND CONDITIONS (PLEASE REFER, FOR EXAMPLE TO CARRIERS CONTRACT OF CARRIAGE TERMS AND CONDITIONS IN RULE 8-B SEA WAYBILL AND RULE 8-A BILL OF LADING, [MESU-032])

THE MERCHANT SHALL BE LIABLE FOR **CONGESTION** SURCHARGE AS SET FORTH BELOW AND REMAINS LIABLE UNTIL THE SAID CHARGES HAVE BEEN PAID IN FULL:

For cargo from USA & Puerto Rico to TIANJINXINGANG:
USD 1500.- per Reefer container

For cargo from USA & Puerto Rico to FUZHOU:
USD 1500.- per Reefer container

For cargo loaded in Asia/Southeast Asia and discharged in USA ports, the following applies:
USD 800.- per 20ft
USD 1000.- per 40ft
USD 1125.- per 40HC
USD 1266.- per 45ft

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 27th day of March 2023, the foregoing Reply was served upon Respondent via electronic mail at the following addresses:

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